

On May 2, 1972, petitioner Rochester Home Builders Association, an association of firms engaged in residential construction in the Rochester metropolitan area, moved the District Court for leave to intervene as a party-plaintiff. In essence, Home Builders' intervenor complaint repeated the allegations of exclusionary zoning practices made by the original plaintiffs. It claimed that these practices arbitrarily and capriciously had prevented its member firms from building low- and moderate-cost housing in Penfield, and thereby had deprived them of potential profits. Home Builders prayed for equitable relief identical in substance to that requested by the original plaintiffs, and also for \$750,000 in damages.⁷ On June 7, 1972, Metro-Act and the other original plaintiffs moved to join petitioner Housing Council in the Monroe County Area, Inc., as a party plaintiff. Housing Council is a not-for-profit New York corporation, its membership comprising some 71 public and private organizations interested in housing problems. An affidavit accompanying the motion stated that 17 of Housing Council's member groups were or hoped to be involved in the development of low- and moderate-cost housing, and that one of its members—the Penfield Better Homes Corp.—“is and has been actively attempting to develop moderate income housing” in Penfield, “but has been stymied by its inability to secure the necessary approvals . . .”⁸

Upon consideration of the complaints and of extensive supportive materials submitted by petitioners, the District Court held that the original plaintiffs, Home Builders, and Housing Council lacked standing to prosecute

⁷ Home Builders also asked the District Court to enjoin the defendants from carrying out threatened retaliation against its members if Home Builders joined this litigation.

⁸ *Id.*, at 174.

the action, that the original complaint failed to state a claim upon which relief could be granted, that the suit should not proceed as a class action, and that, in the exercise of discretion, Home Builders should not be permitted to intervene. The court accordingly denied the motion to add Housing Council as a party-plaintiff, denied Home Builders' motion to intervene, and dismissed the complaint. The Court of Appeals affirmed, reaching only the standing questions.

II

We address first the principles of standing relevant to the claims asserted by the several categories of petitioners in this case. In essence the question of standing is whether the litigant is entitled to have the court decide the merits of the dispute or of particular issues. This inquiry involves both constitutional limitations on federal-court jurisdiction and prudential limitations on its exercise. *E. g.*, *Barrows v. Jackson*, 346 U. S. 249, 255-256 (1953). In both dimensions it is founded in concern about the proper—and properly limited—role of the courts in a democratic society. See *Schlesinger v. Reservists to Stop the War*, 418 U. S. 208, 221-227 (1974); *United States v. Richardson*, 418 U. S. 166, 188-197 (1974) (POWELL, J., concurring).

In its constitutional dimension, standing imports justiciability: whether the plaintiff has made out a "case or controversy" between himself and the defendant within the meaning of Art. III. This is the threshold question in every federal case, determining the power of the court to entertain the suit. As an aspect of justiciability, the standing question is whether the plaintiff has "alleged such a personal stake in the outcome of the controversy" as to warrant *his* invocation of federal-court jurisdiction and to justify exercise of the court's remedial powers on

his behalf. *Baker v. Carr*, 369 U. S. 186, 204 (1962).⁹ The Art. III judicial power exists only to redress or otherwise to protect against injury to the complaining party, even though the court's judgment may benefit others collaterally. A federal court's jurisdiction therefore can be invoked only when the plaintiff himself has suffered "some threatened or actual injury resulting from the putatively illegal action . . ." *Linda R. S. v. Richard D.*, 410 U. S. 614, 617 (1973). See *Data Processing Service v. Camp*, 397 U. S. 150, 151-154 (1970).¹⁰

Apart from this minimum constitutional mandate, this Court has recognized other limits on the class of persons who may invoke the courts' decisional and remedial powers. First, the Court has held that when the asserted harm is a "generalized grievance" shared in substantially equal measure by all or a large class of citizens, that harm alone normally does not warrant exercise of jurisdiction. *E. g.*, *Schlesinger v. Reservists to Stop the War*, *supra*; *United States v. Richardson*, *supra*; *Ex parte Lévit*, 302 U. S. 633, 634 (1937). Second, even when the plaintiff has alleged injury sufficient to meet the "case or controversy" requirement, this Court has held that the plaintiff generally must assert his own legal rights and interests, and cannot rest his claim to relief on the legal rights or interests of third parties. *E. g.*, *Tileston v. Ullman*, 318 U. S. 44 (1943). See *United States v. Raines*, 362 U. S. 17 (1960); *Barrows v.*

⁹ See P. Bator, P. Mishkin, D. Shapiro, & H. Wechsler, *Hart & Wechsler's The Federal Courts and the Federal System* 156 (2d ed. 1973).

¹⁰ The standing question thus bears close affinity to questions of ripeness—whether the harm asserted has matured sufficiently to warrant judicial intervention—and of mootness—whether the occasion for judicial intervention persists. *E. g.*, *Lake Carriers' Assn. v. MacMullan*, 406 U. S. 498 (1972); *Hall v. Beals*, 396 U. S. 45 (1969). See *Anti-Fascist Committee v. McGrath*, 341 U. S. 123, 154-156 (1951) (Frankfurter, J., concurring).

Jackson, supra. Without such limitations—closely related to Art. III concerns but essentially matters of judicial self-governance—the courts would be called upon to decide abstract questions of wide public significance even though other governmental institutions may be more competent to address the questions and even though judicial intervention may be unnecessary to protect individual rights. See, e. g., *Schlesinger v. Reservists to Stop the War*, 418 U. S., at 222.¹¹

Although standing in no way depends on the merits of the plaintiff's contention that particular conduct is illegal, e. g., *Flast v. Cohen*, 392 U. S. 83, 99 (1968), it often turns on the nature and source of the claim asserted. The actual or threatened injury required by Art. III may exist solely by virtue of "statutes creating legal rights, the invasion of which creates standing . . ." See *Linda R. S. v. Richard D.*, *supra*, at 617 n. 3; *Sierra Club v. Morton*, 405 U. S. 727, 732 (1972). Moreover, the source of the plaintiff's claim to relief assumes critical importance with respect to the prudential rules of standing that, apart from Art. III's minimum requirements, serve to limit the role of the courts in resolving public disputes. Essentially, the standing question in such cases is whether the constitutional or statutory provision on which the claim rests properly can be understood as granting persons in the plaintiff's position a right to judicial relief.¹² In some circumstances, counter-

¹¹ Cf. Scott, *Standing in the Supreme Court—A Functional Analysis*, 86 Harv. L. Rev. 645 (1973).

¹² A similar standing issue arises when the litigant asserts the rights of third parties defensively, as a bar to judgment against him. E. g., *Barrows v. Jackson*, 346 U. S. 249 (1953); *McGowan v. Maryland*, 366 U. S. 420, 429-430 (1961). In such circumstances, there is no Art. III standing problem; but the prudential question is governed by considerations closely related to the question whether a person in the litigant's position would have a right of action on the claim. See Part IV, *infra*.